U.S. Embassy Kathmandu
Date: 08-Apr-2026

Dear Prospective Quoter:

Subject: Request for Quotations number 19NP4026Q0010

Enclosed is a Request for Quotations (RFQ) for ***Mobile Telecommunications Services***. If you would like to submit proposal, follow the instructions in Section 3 of the solicitation, complete the required portions of the attached document, and submit it to the address shown on the Standard Form 1449 that follows this letter.

The U.S. Government intends to award a contract/purchase order to the responsible company submitting an acceptable offer at the lowest price. We intend to award a contract/purchase order based on initial proposals, without holding discussions, although we may hold discussions with companies in the competitive range if there is a need to do so.

All queries related to this solicitation must be submitted by 04:59 pm Kathmandu local time on 24-Apr-2026.

Quotations are due by 04:59 pm Kathmandu local time on 11-May-2026. No quotations will be accepted after this time. Quotations must be in English and incomplete quotations will not be accepted.

Your quotation must be submitted electronically to KTMContracts@state.gov. It is important to make sure the submission is made in specific size and format; in MS-Word 2007/2010 or MS-Excel 2007/2010 or Adobe Acrobat (pdf) file format. The file size must not exceed 20MB. If the file size should exceed the 20MB, the submission must be made in separate files and attached to separate emails with less than 20MB each.

In order for a quotation to be considered, you must also complete and submit the following:

1. SF-1449
2. Section 1, Pricing
3. Section 5, Representations and Certifications
4. Additional information as required in Section 3
5. Proof of SAM Registration

6. Cybersecurity Supply Chain Risk Management C- SCRM Questionnaire and/or State Department Secure Software Development Attestation Form

Offerors shall be registered in the SAM (System for Award Management) database at https://www.sam.gov prior to submittal of their offer/proposal as prescribed under FAR 4.1102. Failure to be registered at time of proposal submission may deem the offeror's proposal to be considered non-responsible and no further consideration will be given. Therefore, offerors are highly encouraged to register immediately if they are interested in submitting a response to this requirement.

Sincerely,

Albina Collingham
Contracting Officer

TABLE OF CONTENTS

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER: PR15900040

2. CONTRACT NUMBER:

3. AWARD/EFFECTIVE DATE:

4. ORDER NUMBER:

5. SOLICITATION NUMBER: 19NP4026Q0010

6. SOLICITATION ISSUE DATE: 4/08/2026

7. FOR SOLICITATION INFORMATION CALL:
a. NAME: Vineet Chaudhary
b. TELEPHONE NUMBER *(No collect calls)*: 014234594

8. OFFER DUE DATE/ LOCAL TIME: 5/11/2026 1659 Hrs

9. ISSUED BY — CODE:
US Embassy Nepal
Bramha Cottage, Narayan Gopal Sadak,
Maharajgunj, Kathmandu

10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: ____ % FOR:
☐ SMALL BUSINESS
☐ HUBZONE SMALL BUSINESS
☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
☐ 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 517312
SIZE STANDARD:

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED
☐ SEE SCHEDULE

12. DISCOUNT TERMS

13a. ☐ THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION
☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO — CODE:
American Embassy Kathmandu
Attn: General Services Officer
Maharajgunj, Kathmandu ktmcontracts@state.gov

16. ADMINISTERED BY — CODE:
General Services Officer, US Embassy Nepal
Bramha Cottage, Narayan Gopal Sadak,
Maharajgunj, Kathmandu

17a. CONTRACTOR/ OFFEROR — CODE: — FACILITY CODE:

TELEPHONE NUMBER

17b. ☐ CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY — CODE:
Financial Management Officer
US Embassy Nepal
Bramha Cottage, Narayan Gopal Sadak,
Maharajgunj, Kathmandu
kathmanduinvoices@state.gov

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
1	Base Year Mobile Telecommunications Services	12	MO		
2	Option Year 1 Mobile Telecommunications Services	12	MO		
3	Option Year 2 Mobile Telecommunications Services	12	MO		
4	Option Year 3 Mobile Telecommunications Services	12	MO		
5	Option Year 4 Mobile Telecommunications Services	12	MO		
	*MO - Month				
	(Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 2 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE ____________ OFFER DATED ____________. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER *(Type or print)*: Albina Collingham

31c. DATE SIGNED

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: ____________

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32f. TELPHONE NUMBER OF AUTHORZED GOVERNMENT REPRESENTATIVE 32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER

STOCK RECORD (S/R)		40. PAID BY
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE

42a. RECEIVED BY *(Print)*

42b. RECEIVED AT *(Location)*

42c. DATE RECEIVED *(MM/DD/YYYY)*	42d. TOTAL CONTAINERS

SECTION 1 - THE SCHEDULE
CONTINUATION TO SF-1449
RFQ NUMBER 19NP4026Q0010
PRICES, BLOCK 23

JAMES ZADROGA 9/11 VICTIMS HEALTH AND COMPENSATION ACT OF 2010 NOTICE: UNLESS A WAIVER OR EXCEPTION APPLIES, PAYMENTS SUBSEQUENT TO THIS PROCUREMENT ARE SUBJECT TO AN EXCISE TAX OF 2% PERSUANT TO 26 U.S.C. 5000C.

I. PERFORMANCE WORK STATEMENT

A. The purpose of this firm fixed price purchase order is for **Mobile Telecommunications Services** in accordance with Attachment 1**.**
B. The contract will be for a one-year period from the date of the contract award, with ***four*** one-year options.

QUALITY ASSURANCE AND SURVEILLANCE PLAN (QASP)

This plan provides an effective method to promote satisfactory contractor performance. The QASP provides a method for the Contracting Officer's Representative (COR) to monitor Contractor performance, advise the Contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The Contractor, not the Government, is responsible for management and quality control to meet the terms of the contract. The role of the Government is to monitor quality to ensure that contract standards are achieved.

Performance Objective	Performance Work Statement Paragraphs	Performance Threshold
Services. Performs all ***Mobile Telecommunications Services*** set forth in the Performance Work Statement.	A thru B (Including Attachment 1 at Page Nos. 62-65)	All required services are performed and no more than one (1) customer complaint is received per month.

Purpose:
To ensure the contractor delivers comprehensive, reliable, and responsive mobile communication services as specified in the SOW.

Roles & Responsibilities:

- **CO:** Contract administration and authority for corrective action.
- **COR:** Day-to-day monitoring, documentation, and reporting.
- **Account Manager:** Contractor's primary point of contact.

Performance Objectives, Standards, and Surveillance Methods:

Objective	Performance Standard/AQL	Surveillance Method	Frequency
SIM/eSIM Provisioning	100% of requests fulfilled within 2 business days	Review of request logs	Monthly
Network Connectivity	≥ 99% service availability in Embassy and CUG locations	Spot checks, user reports	Quarterly
CUG Functionality	Free calling within CUG, including sister agencies	Test calls, user feedback	Quarterly
Service Center Proximity	Service center within 3 km, open during business hours	Site visit, documentation	Annually
SIM Replacement	100% of replacements provided within 1 business day	Review of incident logs	Monthly

Objective	Performance Standard/AQL	Surveillance Method	Frequency
Account Management	Dedicated manager responds to Embassy within 4 hours	Email/call logs	Monthly
Customer Support	24/7 support, 95% of calls answered within 2 minutes	Test calls, call logs	Quarterly
International/Roaming Activation	100% activation within 4 hours of written request	Review of request logs	Monthly
Data Usage Policy	Data stops at limit; additional data added within 2 hours	System logs, user reports	Monthly
Call Detail Records (CDR)	CDRs provided within 1 business day of request	Request logs	Monthly
Outage Notification	Embassy notified of outages within 30 minutes	Review of notifications	Per incident
Licensing Compliance	Valid NTA license at all times	License review	Annually

Remedies:

- **Deficient Performance:** Failure to meet standards may result in corrective action, payment withholding, or other remedies per contract.
- **Positive Performance:** Consistent high performance may be recognized in CPARS evaluations.

Documentation & Reporting:

- COR maintains surveillance records and reports significant issues to the CO.

Review & Updates:

QASP reviewed annually or as needed.

II. PRICING

The contractor shall include VAT as a separate charge on the invoice and as separate line items.

2.1. Base Year. The Contractor shall provide the services shown below for the base period of the contract and continuing for a period of 12 months.

CLIN	Description	Quantity of Equipment	Type of services	No. of service	Unit price / service ($)	Total per year ($)
001	CUG SIMs with Following minimum monthly resources: 30 GB Monthly Data Local Unlimited Call 500 SMS International Calling and Roaming Services.	305	Monthly	12		
002	CUG SIMs with Following minimum monthly resources: 15 GB Monthly Data Local Calls - 400 minutes 400 SMS International Calling and Roaming Services.	40	Monthly	12		
003	CUG SIMs with Following minimum monthly resources: 5 GB Monthly Data Local Calls - 250 minutes 250 SMS International Calling and Roaming Services.	210	Monthly	12		
	Total Amount					
	VAT					
	Total Base Year					

2.2. Option Year 1. The Contractor shall provide the services shown below for Option Year 1 of the contract and continuing for a period of 12 months.)

CLIN	Description	Quantity of Equipment	Type of services	No. of service	Unit price / service ($)	Total per year ($)
001	CUG SIMs with Following minimum monthly resources: 30 GB Monthly Data Local Unlimited Call 500 SMS International Calling and Roaming Services.	305	Monthly	12		
002	CUG SIMs with Following minimum monthly resources: 15 GB Monthly Data Local Calls - 400 minutes 400 SMS International Calling and Roaming Services.	40	Monthly	12		
003	CUG SIMs with Following minimum monthly resources: 5 GB Monthly Data Local Calls - 250 minutes 250 SMS International Calling and Roaming Services.	210	Monthly	12		
	Total Amount					
	VAT					
	Total Option Yr 1					

2.3. Option Year 2. The Contractor shall provide the services shown below for Option Year 2 of the contract and continuing for a period of 12 months.

CLIN	Description	Quantity of Equipment	Type of services	No. of service	Unit price / service ($)	Total per year ($)
001	CUG SIMs with Following minimum monthly resources: 30 GB Monthly Data Local Unlimited Call 500 SMS International Calling and Roaming Services.	305	Monthly	12		
002	CUG SIMs with Following minimum monthly resources: 15 GB Monthly Data Local Calls - 400 minutes 400 SMS International Calling and Roaming Services.	40	Monthly	12		
003	CUG SIMs with Following minimum monthly resources: 5 GB Monthly Data Local Calls - 250 minutes 250 SMS International Calling and Roaming Services.	210	Monthly	12		
	Total Amount					
	VAT					
	Total Option Yr 2					

2.4. Option Year 3. The Contractor shall provide the services shown below for Option Year 3 of the contract, and continuing for a period of 12 months

CLIN	Description	Quantity of Equipment	Type of services	No. of service	Unit price / service ($)	Total per year ($)
001	CUG SIMs with Following minimum monthly resources: 30 GB Monthly Data Local Unlimited Call 500 SMS International Calling and Roaming Services.	305	Monthly	12		
002	CUG SIMs with Following minimum monthly resources: 15 GB Monthly Data Local Calls - 400 minutes 400 SMS International Calling and Roaming Services.	40	Monthly	12		
003	CUG SIMs with Following minimum monthly resources: 5 GB Monthly Data Local Calls - 250 minutes 250 SMS International Calling and Roaming Services.	210	Monthly	12		
	Total Amount					
	VAT					
	Total Option Yr 3					

2.5. Option Year 4. The Contractor shall provide the services shown below for Option Year 4 of the contract, and continuing for a period of 12 months

CLIN	Description	Quantity of Equipment	Type of services	No. of service	Unit price / service ($)	Total per year ($)
001	CUG SIMs with Following minimum monthly resources: 30 GB Monthly Data Local Unlimited Call 500 SMS International Calling and Roaming Services.	305	Monthly	12		
002	CUG SIMs with Following minimum monthly resources: 15 GB Monthly Data Local Calls - 400 minutes 400 SMS International Calling and Roaming Services.	40	Monthly	12		
003	CUG SIMs with Following minimum monthly resources: 5 GB Monthly Data Local Calls - 250 minutes 250 SMS International Calling and Roaming Services.	210	Monthly	12		
	Total Amount					
	VAT					
	Total Option Yr 4					

2.6. Total for all years:

Base Year	
Option Year 1	
Option Year 2	
Option Year 3	
Option Year 4	
TOTAL	

Pricing must be in NPR and/or USD.

III. VALUE ADDED TAX

VALUE ADDED TAX. Value Added Tax (VAT) is not included in the CLIN rates. Instead, it will be priced as a separate Line Item in the contract and on Invoices. Local law dictates the portion of the contract price that is subject to VAT; this percentage is multiplied only against that portion. It is reflected for each performance period. The portions of the solicitation subject to VAT are:

CONTINUATION TO SF-1449,
RFQ NUMBER 19NP4026Q0010
SCHEDULE OF SUPPLIES/SERVICES, BLOCK 20
DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

SECTION 2 - CONTRACT CLAUSES

52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL ITEMS (JAN 2026) (DEVIATION) IS INCORPORATED BY REFERENCE. (SEE SF-1449, BLOCK 27A)

52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (FEB 2021)

(a) *Definitions.* As used in this clause—

Foreign person means any person other than a United States person.

United States person, as defined in 26 U.S.C. 7701(a)(30), means–

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 7701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) This clause applies only to foreign persons. It implements 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c)

(1) If the Contractor is a foreign person and has only a partial or no exemption to the withholding, the Contractor shall include the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, with each voucher or invoice submitted under this contract

throughout the period in which this status is applicable. The excise tax withholding is applied at the payment level, not at the contract level. The Contractor should revise each IRS Form W-14 submission to reflect the exemption (if any) that applies to that particular invoice, such as a different exemption applying. In the absence of a completed IRS Form W-14 accompanying a payment request, the default withholding percentage is 2 percent for the section 5000C withholding for that payment request. Information about IRS Form W-14 and its separate instructions is available via the internet at www.irs.gov/w14.

(2) If the Contractor is a foreign person and has indicated in its offer in the provision 52.229-11, Tax on Certain Foreign Procurements—Notice and Representation, that it is fully exempt from the withholding, and certified the full exemption on the IRS Form W-14, and if that full exemption no longer applies due to a change in circumstances during the performance of the contract that causes the Contractor to become subject to the withholding for the 2 percent excise tax then the Contractor shall–

(i) Notify the Contracting Officer within 30 days of a change in circumstances that causes the Contractor to be subject to the excise tax withholding under 26 U.S.C. 5000C; and

(ii) Comply with paragraph (c)(1) of this clause.

(d) The Government will withhold a full 2 percent of each payment unless the Contractor claims an exemption. If the Contractor enters a ratio in Line 12 of the IRS Form W-14, the result of Line 11 divided by Line 10, the Government will withhold from each payment an amount equal to 2 percent multiplied by the contract ratio. If the Contractor marks box 9 of the IRS Form W-14 (rather than completes Lines 10 through 12), the Contractor must identify and enter the specific exempt and nonexempt amounts in Line 15 of the IRS Form W-14; the Government will then withhold 2 percent only from the nonexempt amount. See the IRS Form W-14 and its instructions.

(e) Exemptions from the withholding under this clause are described at 26 CFR 1.5000C-1(d)(5) through (7). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue.

(f) Taxes imposed under 26 U.S.C. 5000C may not be—

(1) Included in the contract price; nor

(2) Reimbursed.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of clause)

ADDENDUM TO CONTRACT CLAUSES
FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: Acquisition.gov or Revolutionary FAR Overhaul. Note that this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet "search engine" (for example, Google, Microsoft Bing or Yahoo) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (FAR) CLAUSES ARE INCORPORATED BY REFERENCE:

CLAUSE	TITLE AND DATE
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017)
52.204-13	SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE (JAN 2026) (DEVIATION)
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS MAINTENANCE (JAN 2026) (DEVIATION)
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2026) (DEVIATION)
52.212-4	TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2026) (DEVIATION)
52.217-2	CANCELLATION UNDER MULTIYEAR CONTRACTS (OCT 1997)
52.224-3	PRIVACY TRAINING (JAN 2017)
52.225-14	INCONSISTENCY BETWEEN ENGLISH VERSION AND TRANSLATION OF CONTRACT (FEB 2000)

52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)

52.228-3 WORKERS' COMPENSATION INSURANCE (DEFENSE BASE ACT) (JUL 2014)

52.232-30 INSTALLMENT PAYMENTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT (OCT 2018)

52.232-34 PAYMENT BY ELECTRONIC FUNDS TRANSFER-OTHER THAN SYSTEM FOR AWARD MANAGEMENT (JUL 2013)

52.232-36 PAYMENT BY THIRD PARTY (FEB 2026) (DEVIATION)

52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013)

52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)

52.233-3 PROTEST AFTER AWARD (JAN 2026) (DEVIATION)

52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (JAN 2026) (DEVIATION)

52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (JAN 2026) (DEVIATION)

52.240-93 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (JAN 2026) (DEVIATION)

52-244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2026) (DEVIATION)

52.253-1 COMPUTER GENERATED FORMS (FEB 2026) (DEVIATION)

THE FOLLOWING FAR CLAUSES ARE PROVIDED IN FULL TEXT:

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the performance period of the contract.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the performance period of the contract or within 30 days after funds for the option year become available, whichever is later.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five years (52.217-8).

(End of clause)

52.222-50 COMBATING TRAFFICKING IN PERSONS (FEB 2026) (DEVIATION)

(a) Definitions. As used in this clause-

Agent means any individual, including a director, an officer, an employee, or an independent contractor, authorized to act on behalf of the organization.

Coercion means-

(1) Threats of serious harm to or physical restraint against any person;

(2) Any scheme, plan, or pattern intended to cause a person to believe that failure to perform an act would result in serious harm to or physical restraint against any person; or

(3) The abuse or threatened abuse of the legal process.

Commercial sex act means any sex act on account of which anything of value is given to or received by any person.

Commercially available off-the-shelf (COTS) item —

(1) Means any item of supply (including construction material) that is—

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101;
(ii) Sold in substantial quantities in the commercial marketplace; and
(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

Debt bondage means the status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for debt, if the value of those services as reasonably assessed is not applied toward the liquidation of the debt or the length and nature of those services are not respectively limited and defined.
Employee means an employee of the Contractor directly engaged in the performance of work under the contract who has other than a minimal impact or involvement in contract performance.
Forced Labor means knowingly providing or obtaining the labor or services of a person-
(1) By threats of serious harm to, or physical restraint against, that person or another person;
(2) By means of any scheme, plan, or pattern intended to cause the person to believe that, if the person did not perform such labor or services, that person or another person would suffer serious harm or physical restraint; or
(3) By means of the abuse or threatened abuse of law or the legal process.

Involuntary servitude includes a condition of servitude induced by means of-
(1) Any scheme, plan, or pattern intended to cause a person to believe that, if the person did not enter into or continue in such conditions, that person or another person would suffer serious harm or physical restraint; or
(2) The abuse or threatened abuse of the legal process.

Recruitment fees means fees of any type, including charges, costs, assessments, or other financial obligations, that are associated with the recruiting process, regardless of the time, manner, or location of imposition or collection of the fee.
(1) Recruitment fees include, but are not limited to, the following fees (when they are associated with the recruiting process) for-
(i) Soliciting, identifying, considering, interviewing, referring, retaining, transferring, selecting, training, providing orientation to, skills testing, recommending, or placing employees or potential employees;
(ii) Advertising;
(iii) Obtaining permanent or temporary labor certification, including any associated fees;
(iv) Processing applications and petitions;
(v) Acquiring visas, including any associated fees;

(vi) Acquiring photographs and identity or immigration documents, such as passports, including any associated fees;
(vii) Accessing the job opportunity, including required medical examinations and immunizations; background, reference, and security clearance checks and examinations; and additional certifications;
(viii) An employer's recruiters, agents or attorneys, or other notary or legal fees;
(ix) Language interpretation or translation, arranging for or accompanying on travel, or providing other advice to employees or potential employees;
(x) Government-mandated fees, such as border crossing fees, levies, or worker welfare funds;
(xi) Transportation and subsistence costs-
(A) While in transit, including, but not limited to, airfare or costs of other modes of transportation, terminal fees, and travel taxes associated with travel from the country of origin to the country of performance and the return journey upon the end of employment; and
(B) From the airport or disembarkation point to the worksite;
(xii) Security deposits, bonds, and insurance; and
(xiii) Equipment charges.
(2) A recruitment fee, as described in the introductory text of this definition, is a recruitment fee, regardless of whether the payment is-
(i) Paid in property or money;
(ii) Deducted from wages;
(iii) Paid back in wage or benefit concessions;
(iv) Paid back as a kickback, bribe, in-kind payment, free labor, tip, or tribute; or
(v) Collected by an employer or a third party, whether licensed or unlicensed, including, but not limited to-
(A) Agents;
(B) Labor brokers;
(C) Recruiters;
(D) Staffing firms (including private employment and placement firms);
(E) Subsidiaries/affiliates of the employer;
(F) Any agent or employee of such entities; and
(G) Subcontractors at all tiers.
Severe forms of trafficking in persons means-
(1) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or
(2) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

Sex trafficking means the recruitment, harboring, transportation, provision, or obtaining of a person for the purpose of a commercial sex act.
Subcontract means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.
Subcontractor means any supplier, distributor, vendor, or firm that furnishes supplies or services to or for a prime contractor or another subcontractor.
United States means the 50 States, the District of Columbia, and outlying areas.
(b) Policy. The United States Government has adopted a policy prohibiting trafficking in persons including the trafficking-related activities of this clause. Contractors, contractor employees, and their agents must not—
(1) Engage in severe forms of trafficking in persons during the period of performance of the contract;
(2) Procure commercial sex acts during the period of performance of the contract;
(3) Use forced labor in the performance of the contract;
(4) Destroy, conceal, confiscate, or otherwise deny access by an employee to the employee's identity or immigration documents, such as passports or drivers' licenses, regardless of issuing authority;

(5)
(i) Use misleading or fraudulent practices during the recruitment of employees or offering of employment, such as failing to disclose, in a format and language understood by the employee or potential employee, basic information or making material misrepresentations during the recruitment of employees regarding the key terms and conditions of employment, including wages and fringe benefits, the location of work, the living conditions, housing and associated costs (if employer or agent provided or arranged), any significant costs to be charged to the employee or potential employee, and, if applicable, the hazardous nature of the work;
(ii) Use recruiters that do not comply with local labor laws of the country in which the recruiting takes place;
(6) Charge employees or potential employees recruitment fees;

(7)
(i) Fail to provide return transportation or pay for the cost of return transportation upon the end of employment-
(A) For an employee who is not a national of the country in which the work is taking place and who was brought into that country for the purpose of working on a U.S. Government contract or subcontract (for portions of contracts performed outside the United States); or
(B) For an employee who is not a United States national and who was brought into the United States for the purpose of working on a U.S. Government contract or subcontract, if the payment of such costs is required under existing temporary worker programs or pursuant

to a written agreement with the employee (for portions of contracts performed inside the United States); except that—
(ii) The requirements of paragraphs (b)(7)(i) of this clause must not apply to an employee who is—
(A) Legally permitted to remain in the country of employment and who chooses to do so; or
(B) Exempted by an authorized official of the contracting agency from the requirement to provide return transportation or pay for the cost of return transportation;
(iii) The requirements of paragraph (b)(7)(i) of this clause are modified for a victim of trafficking in persons who is seeking victim services or legal redress in the country of employment, or for a witness in an enforcement action related to trafficking in persons. The contractor must provide the return transportation or pay the cost of return transportation in a way that does not obstruct the victim services, legal redress, or witness activity. For example, the contractor must not only offer return transportation to a witness at a time when the witness is still needed to testify. This paragraph does not apply when the exemptions at paragraph (b)(7)(ii) of this clause apply.
(8) Provide or arrange housing that fails to meet the host country housing and safety standards; or
(9) If required by law or contract, fail to provide an employment contract, recruitment agreement, or other required work document in writing. Such written work document must be in a language the employee understands. If the employee must relocate to perform the work, the work document must be provided to the employee at least five days prior to the employee relocating. The employee's work document must include, but is not limited to, details about work description, wages, prohibition on charging recruitment fees, work location(s), living accommodations and associated costs, time off, roundtrip transportation arrangements, grievance process, and the content of applicable laws and regulations that prohibit trafficking in persons.
(c) Contractor requirements. The Contractor must-
(1) Notify its employees and agents of-
(i) The United States Government's policy prohibiting trafficking in persons, described in paragraph (b) of this clause; and
(ii) The actions that will be taken against employees or agents for violations of this policy. Such actions for employees may include, but are not limited to, removal from the contract, reduction in benefits, or termination of employment; and
(2) Take appropriate action, up to and including termination, against employees, agents, or subcontractors that violate the policy in paragraph (b) of this clause.

(d) Notification.
(1) The Contractor must inform the Contracting Officer and the agency Inspector General immediately of—
(i) Any credible information it receives from any source (including host country law enforcement) that alleges a Contractor employee, subcontractor, subcontractor employee, or

their agent has engaged in conduct that violates the policy in paragraph (b) of this clause (see also 18 U.S.C. 1351, Fraud in Foreign Labor Contracting, and 52.203-13(b)(3)(i)(A), if that clause is included in the solicitation or contract, which requires disclosure to the agency Office of the Inspector General when the Contractor has credible evidence of fraud); and
(ii) Any actions taken against a Contractor employee, subcontractor, subcontractor employee, or their agent pursuant to this clause.
(2) If the allegation may be associated with more than one contract, the Contractor must inform the contracting officer for the contract with the highest dollar value.
(e) Remedies. In addition to other remedies available to the Government, the Contractor's failure to comply with the requirements of paragraphs (c), (d), (g), (h), or (i) of this clause may result in—
(1) Requiring the Contractor to remove a Contractor employee or employees from the performance of the contract;
(2) Requiring the Contractor to terminate a subcontract;
(3) Suspension of contract payments until the Contractor has taken appropriate remedial action;
(4) Loss of award fee, consistent with the award fee plan, for the performance period in which the Government determined Contractor non-compliance;
(5) Declining to exercise available options under the contract;
(6) Termination of the contract for default or cause, in accordance with the termination clause of this contract; or
(7) Suspension or debarment.
(f) Mitigating and aggravating factors. When determining remedies, the Contracting Officer may consider the following:
(1) Mitigating factors. The Contractor had a Trafficking in Persons compliance plan or an awareness program at the time of the violation, was in compliance with the plan, and has taken appropriate remedial actions for the violation, that may include reparation to victims for such violations.
(2) Aggravating factors. The Contractor failed to abate an alleged violation or enforce the requirements of a compliance plan, when directed by the Contracting Officer to do so.

(g) Full cooperation.
(1) The Contractor must, at a minimum—
(i) Disclose to the agency Inspector General information sufficient to identify the nature and extent of an offense and the individuals responsible for the conduct;
(ii) Provide timely and complete responses to Government auditors' and investigators' requests for documents;
(iii) Cooperate fully in providing reasonable access to its facilities and staff (both inside and outside the U.S.) to allow contracting agencies and other responsible Federal agencies to conduct audits, investigations, or other actions to ascertain compliance with the Trafficking Victims Protection Act of 2000 (22 U.S.C. chapter 78), E.O. 13627, or any other applicable

law or regulation establishing restrictions on trafficking in persons, the procurement of commercial sex acts, or the use of forced labor; and
(iv) Protect all employees suspected of being victims of or witnesses to prohibited activities, prior to returning to the country from which the employee was recruited, and must not prevent or hinder the ability of these employees from cooperating fully with Government authorities.
(2) The requirement for full cooperation does not foreclose any Contractor rights arising in law, the FAR, or the terms of the contract. It does not-
(i) Require the Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine;
(ii) Require any officer, director, owner, employee, or agent of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; or
(iii) Restrict the Contractor from—
(A) Conducting an internal investigation; or
(B) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

(h) Compliance plan.
(1) This paragraph (h) applies to any portion of the contract that—
(i) Is for supplies, other than commercially available off-the-shelf items, acquired outside the United States, or services to be performed outside the United States; and
(ii) Has an estimated value that exceeds $700,000.
(2) The Contractor must maintain a compliance plan during the performance of the contract that is appropriate—
(i) To the size and complexity of the contract; and
(ii) To the nature and scope of the activities to be performed for the Government, including the number of non-United States citizens expected to be employed and the risk that the contract or subcontract will involve services or supplies susceptible to trafficking in persons.
(3) Minimum requirements. The compliance plan must include, at a minimum, the following:
(i) An awareness program to inform contractor employees about the Government's policy prohibiting trafficking-related activities described in paragraph (b) of this clause, the activities prohibited, and the actions that will be taken against the employee for violations. Additional information about Trafficking in Persons and examples of awareness programs can be found at the Web site for the Department of State's Office to Monitor and Combat Trafficking in Persons at http://www.state.gov/j/tip/.
(ii) A process for employees to report, without fear of retaliation, activity inconsistent with the policy prohibiting trafficking in persons, including a means to make available to all employees the hotline phone number of the Global Human Trafficking Hotline at 1-844-888-FREE and its email address at help@befree.org.

(iii) A recruitment and wage plan that only permits the use of recruitment companies with trained employees, prohibits charging recruitment fees to the employee or potential employee, and ensures that wages meet applicable host-country legal requirements or explains any variance.
(iv) A housing plan, if the Contractor or subcontractor intends to provide or arrange housing, that ensures that the housing meets host-country housing and safety standards.
(v) Procedures to prevent agents and subcontractors at any tier and at any dollar value from engaging in trafficking in persons (including activities in paragraph (b) of this clause) and to monitor, detect, and terminate any agents, subcontracts, or subcontractor employees that have engaged in such activities.

(4) Posting.
(i) The Contractor must post the relevant contents of the compliance plan, no later than the initiation of contract performance, at the workplace (unless the work is to be performed in the field or not in a fixed location) and on the Contractor's Web site (if one is maintained). If posting at the workplace or on the Web site is impracticable, the Contractor must provide the relevant contents of the compliance plan to each worker in writing.
(ii) The Contractor must provide the compliance plan to the Contracting Officer upon request.
(5) Certification. Annually after receiving an award, the Contractor must submit a certification to the Contracting Officer that—
(i) It has implemented a compliance plan to prevent any prohibited activities identified at paragraph (b) of this clause and to monitor, detect, and terminate any agent, subcontract or subcontractor employee engaging in prohibited activities; and
(ii) After having conducted due diligence, either—
(A) To the best of the Contractor's knowledge and belief, neither it nor any of its agents, subcontractors, or their agents is engaged in any such activities; or
(B) If abuses relating to any of the prohibited activities identified in paragraph (b) of this clause have been found, the Contractor or subcontractor has taken the appropriate remedial and referral actions.

(i) Subcontracts.
(1) The Contractor must include the substance of this clause, including this paragraph (i), in all subcontracts and in all contracts with agents. The requirements in paragraph (h) of this clause apply only to any portion of the subcontract that—
(i) Is for supplies, other than commercially available off-the-shelf items, acquired outside the United States, or services to be performed outside the United States; and
(ii) Has an estimated value that exceeds $700,000.
(2) If any subcontractor is required by this clause to submit a certification, the Contractor must require submission prior to the award of the subcontract and annually thereafter. The certification must cover the items in paragraph (h)(5) of this clause.

(End of clause)

52.232-19 AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR (APR 1984)

Funds are not presently available for performance under this contract beyond September 30 of the current calendar year. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond September 30 of the current calendar year, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of State Acquisition Regulation (48 CFR Chapter 6) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

THE FOLLOWING DOSAR CLAUSES ARE PROVIDED IN FULL TEXT:

652.215-70EXAMINATION OF RECORDS

(a) With respect to matters related to this contract or a subcontract hereunder, the Department of State Office of the Inspector General, or an authorized representative, shall have upon request:
(1) Complete, prompt, and free access to all Contractor and Subcontractor files (in any format), documents, records, data, premises, and employees, except as limited by law; and

(2) The right to interview any current Contractor and Subcontractor personnel, individually and directly, with respect to such matters.

(b) This clause may not be construed to require the contractor or any subcontractor to create or maintain any record that the contractor or subcontractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(c) The Contractor shall insert a clause containing all the terms of this clause, including this paragraph (c), in all subcontracts under this contract other than acquisitions described in Federal Acquisition Regulation 15.209(b)(1).

652.229-70 EXCISE TAX EXEMPTION STATEMENT FOR CONTRACTORS WITHIN THE UNITED STATES (JUL 1988)

This is to certify that the item(s) covered by this contract is/are for export solely for the use of the U.S. Foreign Service Post identified in the contract schedule.

The Contractor shall use a photocopy of this contract as evidence of intent to export. Final proof of exportation may be obtained from the agent handling the shipment. Such proof shall be accepted in lieu of payment of excise tax.

(End of clause)

652.232-70 PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE) (AUG 1999)

(a) General. The Government shall pay the Contractor as full compensation for all work required, performed, and accepted under this contract the firm fixed-price stated in this contract.

(b) Invoice Submission. The Contractor shall submit invoices in an original and three copies to the office identified in Block 18b of the SF-1449. To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

The Contractor shall show Value Added Tax (VAT) as a separate item on invoices submitted for payment.

Finance Management Office
US Embassy, Maharajgunj
Kathmandu, Nepal

(c) Contractor Remittance Address. The Government will make payment to the contractor's address stated on the cover page of this contract, unless a separate remittance address is shown below:

____
____
____

(End of clause)

652.237-72 OBSERVANCE OF LEGAL HOLIDAYS AND ADMINISTRATIVE LEAVE (FEB 2015)

(a) The Department of State observes the following days as holidays:

New Year's Day
Martin Luther King's Birthday
Washington's Birthday
Holi Purnima
Nepali New Year
Buddha Jayanti
Memorial Day
Juneteenth National Independence Day
Independence Day
Shree Krishna Janmashthami
Labor Day
Columbus Day
Astami (Dashain)
Nawami (Dashain)
Dashami (Dashain)
Ekadashi (Dashain)
Laxmi Puja (Tihar)
Gai Puja (Tihar)
Gobardhan Puja (Tihar)
Bhai Tika (Tihar)
Veterans Day
Thanksgiving Day
Christmas Day

Any other day designated by Federal law, Executive Order, or Presidential Proclamation.

(b) When New Year's Day, Independence Day, Veterans Day or Christmas Day falls on a Sunday, the following Monday is observed; if it falls on Saturday the preceding Friday is observed. Observance of such days by Government personnel shall not be cause for additional period of performance or entitlement to compensation except as set forth in the contract. If the contractor's personnel work on a holiday, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, unless authorized pursuant to an overtime clause elsewhere in this contract.

(c) When the Department of State grants administrative leave to its Government employees, assigned contractor personnel in Government facilities shall also be dismissed. However, the contractor agrees to continue to provide sufficient personnel to perform round-the-clock requirements of critical tasks already in operation or scheduled, and shall be guided by the instructions issued by the contracting officer or his/her duly authorized representative.

(d) For fixed-price contracts, if services are not required or provided because the building is closed due to inclement weather, unanticipated holidays declared by the President, failure of Congress to appropriate funds, or similar reasons, deductions will be computed as follows:

(1) The deduction rate in dollars per day will be equal to the per month contract price divided by 21 days per month.

(2) The deduction rate in dollars per day will be multiplied by the number of days services are not required or provided.

If services are provided for portions of days, appropriate adjustment will be made by the contracting officer to ensure that the contractor is compensated for services provided.

(e) If administrative leave is granted to contractor personnel as a result of conditions stipulated in any "Excusable Delays" clause of this contract, it will be without loss to the contractor. The cost of salaries and wages to the contractor for the period of any such excused absence shall be a reimbursable item of direct cost hereunder for employees whose regular time is normally charged, and a reimbursable item of indirect cost for employees whose time is normally charged indirectly in accordance with the contractors accounting policy.

(End of clause)

652.237-802 CONTRACTOR IDENTIFICATION (JULY 2008)

Contract performance may require contractor personnel to attend meetings with government personnel and the public, work within government offices, and/or utilize government email.

Contractor personnel must take the following actions to identify themselves as non-federal employees:

1) Use an email signature block that shows name, the office being supported and company affiliation (e.g. “John Smith, Office of Human Resources, ACME Corporation Support Contractor”);

2) Clearly identify themselves and their contractor affiliation in meetings;

3) Identify their contractor affiliation in Departmental e-mail and phone listings whenever contractor personnel are included in those listings; and

4) Contractor personnel may not utilize Department of State logos or indicia on business cards.

(End of clause)

652.239-800 CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT REQUIREMENTS (AUG 2024)

(a) Definitions. As used in this clause:
Covered article - The term "covered article" includes-
(1) "Information and Communications technology" which is an industry term for information technology that is involved in integrating telecommunications (e.g., telephone lines and wireless signals) and computers to enable users to access, store, manipulate, transmit, and receive digital information. This includes software, software as a service, digital and data services, and hardware components that support information creation, storage, transfer, and management, like computers and smartphones.

(2) "Telecommunications Equipment", which means equipment, other than customer premises equipment, used by a carrier to provide telecommunications services, and includes software integral to such equipment (including upgrades).

(3) "Telecommunications Service", which means the offering of telecommunications for a fee directly to the public, or to such classes of users as to be effectively available directly to the public, regardless of the facilities used.

(4) “Cybersecurity Supply Chain Risk”, which means the risk that a person may sabotage, maliciously introduce unwanted function, extract data, or otherwise manipulate the design, integrity, manufacturing, production, distribution, installation, operation, maintenance, disposition, or retirement of covered articles to surveil, deny, disrupt, or otherwise manipulate the function, use, or operation of the covered articles or information stored or transmitted on the covered articles.

(5) “Incident,” which means, per the Federal Information Security Modernization Act of 2014, “an occurrence that (A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information or an information system; or (B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.”

(6) "Vulnerability,” means any weakness in an information system, system security procedures, internal controls, or implementation that could be exploited or triggered by a threat source.

(b*) Contractor Cybersecurity Supply Chain Risk Management Responsibilities.* The Contractor must regularly identify, assess, monitor, and mitigate cybersecurity supply chain risks when providing covered articles or services to the Government. The Contractor shall maintain artifacts (i.e., any byproduct of hardware or software development that helps describe the architecture, design, and function of that hardware or software) that document its compliance with this paragraph and shall provide these artifacts to the Government within 48 hours of request, which may be redacted to remove sensitive proprietary information.

(c) *Supporting Government Cybersecurity Supply Chain Risk Assessments.* No more than an estimated once per year, the Contractor must provide any requested information related to its supply chain within 10 business days except information that is protected by a non-disclosure agreement with its customers (e.g., another federal agency).

(d) *Novation Agreement Notice.* FAR 42.1203 require Government approval of novation agreements. For proposed novation agreements for this contract, the Contractor shall provide any information requested by the Government regarding the proposed successor's identity and information regarding its supply chain.

(e) *Notification procedures for cybersecurity supply chain incidents.* When an incident occurs, the Contractor must contact the CO or their designee within 72 hours of the incident.

(f) *Subcontracts*. The Contractor shall insert the substance of this clause in all subcontracts and other contractual instruments in support of this contract.

(g) *Attestation following Major Version Change.* For software provided under the contract that required an approved Secure Software Development Attestation Form, the responses on this form apply to the software's major version changes (e.g., using a semantic versioning schema of Major.Minor.Patch, the software version number goes from 2.5 to 3.0) unless the Contractor otherwise notifies the Contracting Officer that the form is no longer valid. This notification to the Contracting Officer must be submitted within 15 days of the major version change and must include a new completed and signed Secure Software Development Attestation Form.

(end of clause)

652.242-70<u>CONTRACTING OFFICER'S REPRESENTATIVE (COR) AUG 1999)</u>

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this contract. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided, that the designee shall not change the terms or conditions of the contract, unless the COR is a warranted Contracting Officer and this authority is delegated in the designation.

(b) The COR for this contract is ***Telephone Radio Technician***.

(End of clause)

652.242-73AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

(1) That is has obtained authorization to operate and do business in the country or countries in which this contract will be performed;

(2) That is has obtained all necessary licenses and permits required to perform this contract; and,

(3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

(End of clause)

652.243-70 NOTICES (AUG 1999)

Any notice or request relating to this contract given by either party to the other shall be in writing. Said notice or request shall be mailed or delivered by hand to the other party at the address provided in the schedule of the contract. All modifications to the contract must be made in writing by the Contracting Officer.

(End of clause)

SECTION 3 - SOLICITATION PROVISIONS

52.212-1 INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023) IS INCORPORATED BY REFERENCE (SEE SF-1449, BLOCK 27A)

ADDENDUM TO 52.212-1

A. Summary of Instructions. Each offer must consist of the following:

A.1. CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT C-SCRM Proposal/Quote Instructions (corresponding instructions to the factor below)

Cybersecurity Supply Chain Risk Management (C-SCRM) Forms

The offeror shall include in its offer Attachment 2, C-SCRM Questionnaire. In lieu of a completed C-SCRM Questionnaire, the vendor may submit a third party authorizing official conducted assessment, such as ISO 27001, ISO 9000, SOC II, or FEDRAMP authorization.

If the offeror is providing any software, the offeror must complete Attachment 3, State Department Secure Software Development Attestation Form (or another agency's equivalent form), and either include it in the offer, submit it to the CISA Repository for Software Attestations and Artifacts website and indicate in its offer that the form is on this website, or upload the form to a public website and provide a link to the form in the offer. Both documents must be completed in accordance with each attachment's instructions. Failure to follow the attachment's instructions may result in rejection of the offer.

A.2. A completed solicitation, in which the SF-1449 cover page (blocks 12, 17, 19-24, and 30 as appropriate), and Section 1 has been filled out.

The Offeror shall include Defense Base Act (DBA) insurance premium costs covering employees. The offeror may obtain DBA insurance directly from any Department of Labor approved providers at the DOL website at *http://www.dol.gov/owcp/dlhwc/lscarrier.htm]*

A.3. Information demonstrating the offeror's/quoter's ability to perform, including:

(1) Name of a Corporate Account Manager (or other liaison to the U.S. Embassy/Consulate) who understands written and spoken English;
(2) Evidence that the offeror/quoter operates an established business with a permanent address and telephone listing in Nepal.
(3) The offeror shall provide proof of SAM registration to include the SAM UEI number.
(4) SIM / eSIM Provisioning

(5) 24/7 support plan, including:
Commitment to provide telework and consultation service during the period of the contract in case of emergency within 24 hours of COR contact

(6) List of clients over the past three years, demonstrating prior experience with relevant past performance information and references (provide dates of contracts, places of performance, value of contracts, contact names, telephone and fax numbers and email addresses). If the offeror has not performed comparable services in Nepal then the offeror shall provide its international experience. Offerors are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the offeror's:

- Quality of services provided under the contract;
- Compliance with contract terms and conditions;
- Effectiveness of management;
- Willingness to cooperate with and assist the customer in routine matters, and when confronted by unexpected difficulties; and
- Business integrity / business conduct. The Government will use past performance information primarily to assess an offeror's capability to meet the solicitation performance requirements, including the relevance and successful performance of the offeror's work experience. The Government may also use this data to evaluate the credibility of the offeror's proposal. In addition, the Contracting Officer may use past performance information in making a determination of responsibility.

(7) Evidence that the offeror/quoter can provide the necessary personnel, equipment, and financial resources needed to perform the work;

(8) A copy of Nepal Telecommunications Authority (NTA) and other necessary licenses and permits must be provided with the offer (see DOSAR 652.242-73 in Section 2).

(9) The offeror's strategic plan for **Mobile Telecommunications Services** to include but not limited to:

(a) A work plan taking into account all work elements in Section 1, Performance Work Statement.

(b) Identify types and quantities of equipment, supplies and materials required for performance of services under this contract. Identify if the offeror already possesses the listed items and their condition for suitability and if not already possessed or inadequate for use how and when the items will be obtained;

(c) Plan of ensuring quality of services including but not limited to contract administration and oversight; and

(d) (1) If insurance is required by the solicitation, a copy of the Certificate of Insurance(s),

or (2) a statement that the contractor will get the required insurance, and the name of the insurance provider to be used.

(e) company brochure

(f) client list

(10) Information on Connectivity within Nepal

(11) List of International Roaming contracts.

(12) Offeror is required to provide a copy of the available corporate plans for Closed User Group (CUG)

(13) Offeror is required to provide a Price List for accessories.

(14) Evidence that the Contractor has a recovery plan in the event of an emergency or disaster.

(15) Any other written information that will provide proof of the company's technical and financial responsibility

(16) Network (Population) Coverage Map

(17) Nearest Service Center Proximity

(18) Provision for Lost/Stolen Device Tracking

(19) Corporate Portal Access

ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at Acquisition.gov this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet "search engine" (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATION SOLICITATION PROVISIONS ARE INCORPORATED BY REFERENCE:

PROVISION TITLE AND DATE

52.214-34	SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991)

THE FOLLOWING FAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

52.237-1 SITE VISIT (APR 1984)

The site visit will be held on **22-Apr-2026 at 10:15 am** (Kathmandu time) at US Embassy Nepal, Maharajgunj, Kathmandu. Prospective offerors/quoters should contact chaudharyv@state.gov for additional information or to arrange entry to the building.

(End of provision)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.
(b) The use in this solicitation of any Department of State Acquisition Regulation (48 CFR Chapter 6) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

THE FOLLOWING DOSAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

652.206-70 ADVOCATE FOR COMPETITION/OMBUDSMAN (FEB 2015)

(a) The Department of State's Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial practices, potential offerors are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

(1) For solicitations issued by the Office of Acquisition Management (A/GA/AMD) or a Regional Procurement Support Office, the A/GA/AMD Advocate for Competition, at AQMCompetitionAdvocate@state.gov.

(2) For all others, the Department of State Advocate for Competition at cat@state.gov.

(b) The Department of State's Acquisition Ombudsman has been appointed to hear concerns from potential offerors and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the contracting officer, the Technical Evaluation Panel or Source Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. When requested and appropriate, the ombudsman will maintain strict confidentiality as to the source of the concern. The ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of formal contract disputes. Interested parties are invited to contact the contracting activity ombudsman at ombuds@state.gov. For an American Embassy or overseas post, refer to the numbers below for the Department Acquisition Ombudsman. Concerns, issues, disagreements, and recommendations which cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696 or write to: Department of State, Acquisition Ombudsman, Office of Global Acquisitions (A/GA), Suite 1060, SA-15, Washington, DC 20520.

(End of provision)

SECTION 4 - EVALUATION FACTORS

- Award will be made to the lowest priced, acceptable, responsible offeror. The quoter shall submit a completed solicitation, including Sections 1 and 5.

- The Government reserves the right to reject proposals that are unreasonably low or high in price.

- The lowest price will be determined by multiplying the offered prices times the estimated quantities in "Prices - Continuation of SF-1449, block 23", and arriving at a grand total, including all options.

- The Government will determine acceptability by assessing the offeror's compliance with the terms of the RFQ **to include the technical information required by Section 3,** including but not limited to:

  - Details of Qualified Corporate Account Manager
  - International Services
  - Network (Population) Coverage Map
  - Available corporate plans & Closed User Group (CUG) meeting minimum criteria
  - Unlimited Credit Limit
  - Service Center Proximity
  - Within 3 km
  - 24/7 Support Plan
  - Lost/Stolen Device Tracking
  - Corporate Portal Access
  - SIM / e-SIM Provisioning
  - Nepal Telecommunications Authority (NTA) and other necessary licenses and permits
  - C-SCRM Forms

- The Government will determine contractor responsibility by analyzing whether the apparent successful offeror complies with the requirements of FAR 9.1, including:

  - Adequate financial resources or the ability to obtain them;
  - Ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments;
  - Satisfactory record of integrity and business ethics;
  - Necessary organization, experience, and skills or the ability to obtain them;
  - Necessary equipment and facilities or the ability to obtain them; and

- Be otherwise qualified and eligible to receive an award under applicable laws and regulations.

ADDENDUM TO EVALUATION FACTORS
FAR AND DOSAR PROVISION(S) NOT PRESCRIBED IN PART 12

THE FOLLOWING FAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

52.217-5 EVALUATION OF OPTIONS (JAN 2026) (DEVIATION)

Except when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

52.225-17 EVALUATION OF FOREIGN CURRENCY OFFERS (FEB 2000)

If the Government receives offers in more than one currency, the Government will evaluate offers by converting the foreign currency to United States currency using the exchange rate used by the Embassy in effect as follows:

(a) For acquisitions conducted using sealed bidding procedures, on the date of bid opening.

(b) For acquisitions conducted using negotiation procedures—

(1) On the date specified for receipt of offers, if award is based on initial offers; otherwise

(2) On the date specified for receipt of proposal revisions.

52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION (JAN 2017)

(a) Definition. As used in this provision-

Internal confidentiality agreement or statement, subcontract, and subcontractor , are defined in the clause at 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.

(b) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use funds appropriated (or otherwise made available) for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(c) The prohibition in paragraph (b) of this provision does not contravene requirements applicable to Standard Form 312, (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(d) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(End of provision)

52.204-7 SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (JAN 2026) (DEVIATION).

The Offeror shall have an active Federal Government contracts registration in the System for Award Management (SAM) when submitting an offer or quotation in response to this solicitation and at the time of award. As part of the SAM registration process, the Government collects information, as described in paragraphs (b) through (d) of this provision, that is necessary to identify the Offeror and for the Offeror to be awarded Federal Government contracts. To register in SAM, go to https://www.sam.gov . Allow for processing time when registering in SAM. If the Offeror is not registered in SAM, it should register immediately after receiving this solicitation.

(a) Definitions. As used in this provision—

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at the Federal Acquisition Regulation (FAR) 52.204-13, System for Award Management—Maintenance, of this solicitation.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer identification number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-13, System for Award Management—Maintenance, of this solicitation.

(b) Identifiers. The Offeror shall obtain and provide the following identifying information:

(1) Unique entity identifier (UEI).

(i) The Offeror shall obtain a UEI to register in SAM. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI to the Offeror. Go to https://www.sam.gov for instructions on obtaining a UEI.

(ii) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation “Unique Entity Identifier” followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(iii) The Contracting Officer will use the UEI to verify that the Offeror has an active Federal Government contracts registration in SAM.

(2) Taxpayer identification number (TIN).

(i) The Offeror shall provide its TIN or related information to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and implementing regulations issued by the IRS. The Offeror shall consent for TIN validation; and

(3) Commercial and Government Entity (CAGE) code.

(i) The Offeror shall provide a CAGE code and legal business name (Do not use a “doing business as” name) for—

(A) Itself;

(B) Its immediate owner(s), if any;

(C) Its highest-level owner, if any; and

(D) Any predecessor(s), or predecessor of an Offeror’s predecessor, that held a Federal contract or grant within the last three years.

(ii) If the Offeror is in the United States or its outlying areas and does not already have a CAGE code assigned, the DLA CAGE Branch will assign a CAGE code to the Offeror as a part of the SAM registration process. For information on obtaining a CAGE code go to https://cage.dla.mil/ .

(iii) The Offeror shall get from any immediate and/or highest-level owner(s) their respective CAGE code(s) to provide the code(s) as part of the registration (FAR 52.204-7(b)(3)(i)).

(iv) If the Offeror is located outside of the United States or its outlying areas, and does not already have a CAGE code assigned, the Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is…	Then…
Located in a country that is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau https://www.nato.int/structur/ac/135/about/contacts
Located in a country that is not a member of NATO or a sponsored nation	Contact the NATO Support and Procurement Agency (NSPA) https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx

(c) Representations and certifications.

(1) The following FAR solicitation provisions contain entity-level representations and certifications that the Offeror shall submit as part of their Federal Government contracts registration in SAM:

Provision	Title	Date
52.204-5	Women-Owned Business (Other Than Small Business)	Oct 2014
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations—Representation	Nov 2015
52.209-5	Certification Regarding Responsibility Matters	Aug 2020
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law	Feb 2016
52.219-1	Small Business Program Representations	Feb 2024
52.219-1 Alt I	Small Business Program Representations, with its Alternate I	Feb 2024

52.219-1 Alt II	Small Business Program Representations, with its Alternate II	Mar 2023
52.226-2	Historically Black College or University and Minority Institution Representation	Oct 2014

(2) By submitting its offer, the Offeror verifies that, as of the date of its offer, its representations and certifications posted electronically in SAM for the provisions listed in paragraph (c)(1) of this provision are current, accurate, and complete. The Offeror's representations and certifications in SAM are hereby incorporated by reference into its offer.

(d) Other information. The Offeror shall provide more information on its business operations and type that is necessary to be considered for award of certain contracts and financial information necessary to receive payment under contracts.

(End of provision)

52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (JAN 2026) (DEVIATION)

(a) Definitions. As used in this clause—
Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).
Subsidiary means an entity in which more than 50 percent of the entity is owned—
(1) Directly by a parent corporation; or
(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) Representation. The Offeror represents that-
(1) It □ is, □ is not an inverted domestic corporation; and
(2) It □ is, □ is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (JAN 2026) (DEVIATION)

(a) The Government will not enter into a contract with any corporation that—
(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or
(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that–
(1) It is □ is not □ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and
(2) It is □ is not □ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS – NOTICE AND REPRESENTATION (JUL 2025)

(a) Definitions. As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if–

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14 . Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It □ is □ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 □ a full exemption, or □ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions .

(End of provision)

52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (JAN 2026) (DEVIATION)

(a) Definitions. As used in this provision-—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) Procedures.

(1) Covered telecommunications and video surveillance. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(2) FASCSA Orders.

(i) The Offeror shall search in SAM for the phrase "FASCSA order" for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) Covered telecommunications equipment or services representations. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) FASCSA Representation. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) Sudan certification. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) Iran Representation and Certifications.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov .

(g) Disclosure.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at https://dibnet.dod.mil .

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) Executive agency review of disclosures. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

THE FOLLOWING DOSAR PROVISION IS PROVIDED IN FULL TEXT:

652.225-70 ARAB LEAGUE BOYCOTT OF ISRAEL (AUG 1999)

(a) Definitions. As used in this provision:
Foreign person means any person other than a United States person as defined below.

United States person means any United States resident or national (other than an individual resident outside the United States and employed by other than a United States person), any domestic concern (including any permanent domestic establishment of any foreign concern), and any foreign subsidiary or affiliate (including any permanent foreign establishment) of any domestic concern which is controlled in fact by such domestic concern, as provided under the Export Administration Act of 1979, as amended.

(b) Certification. By submitting this offer, the offeror certifies that it is not:

(1) Taking or knowingly agreeing to take any action, with respect to the boycott of Israel by Arab League countries, which Section 8(a) of the Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)) prohibits a United States person from taking; or,

(2) Discriminating in the award of subcontracts on the basis of religion.

(End of Provision)

Attachment 1

Diplomatic Technology Office

PERFORMANCE WORK STATEMENT

Title: Cell phone contract for Base Year & 4 Option Years

Description: Cell phone contract for Base Year & 4 Option Years for 555 SIM cards

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Corporate Cell Phone Services for the U.S. Embassy Kathmandu

The service provider shall furnish comprehensive mobile communication services for the U.S. Embassy Kathmandu in accordance with the following requirements:

1. **Provision of Services**

The service provider shall supply the required number of physical SIM cards and eSIM profiles and shall activate services as requested by the Embassy.

2. **Standard Features**

All SIM cards shall include voice, data, SMS, caller ID, missed call alerts, balance check, and other standard mobile service features.

3. **International Services**

International calling and roaming (voice, data, and SMS) shall be activated upon receipt of a written request (email) from Embassy-authorized personnel.

4. **Network Coverage**

The provider must offer nationwide coverage, reaching at least 90% of the country's population coverage, with reliable voice and data service.

5. **Closed User Group (CUG)**

A Closed User Group (CUG) shall be established for Embassy numbers, allowing free calling within the group.

6. **Sister Agencies Inclusion**

The service provider shall include the numbers of Embassy-affiliated agencies (e.g., Peace Corps) in the same CUG upon request.

7. **Credit Limit**

The provider shall extend an unlimited credit limit to the Embassy.

8. **SIM Replacement**

Replacement of damaged, defective, or lost SIM cards/ eSIM shall be provided at no cost.

9. **Corporate Account Manager**

A dedicated corporate account manager shall be assigned to ensure streamlined, one-window service for the Embassy. The corporate account manager must be able to converse fluently in both English and Nepali.

10. **Service Center Proximity**

The provider must operate a service center within a 3 km radius of the Embassy premises.

11. **Authorized Requests Only**

The provider shall respond exclusively to written requests (email) from Embassy-authorized personnel for actions such as adding/terminating numbers, package changes, ownership transfers, or enabling/disabling services.

12. **24/7 Support**

The provider shall offer round-the-clock (24/7) technical and customer support for Embassy users.

13. **Ownership Transfer**

Ownership transfer of numbers between the Embassy and individual users shall be permitted as per standard procedures.

14. **Additional Data Allowance**

Additional data packages shall be added upon written requests from Embassy-authorized personnel at any time.

15. **Data Usage Policy**

Once the subscribed data package is consumed, data services must automatically stop. Individual users may request additional data at their own expense as needed.

16. **Plan Options**

The provider shall share all available corporate plans to allow the Embassy to select the most suitable options.

17. **Detail Records (CDR)**

Call Detail Records shall be provided free of charge upon written request.

18. **Lost/Stolen Device Tracking**

Assistance shall be provided to track lost or stolen Embassy mobile devices upon request.

19. **Number Retention**

Embassy numbers shall remain active even during extended periods of inactivity.

20**. e-SIM Management**

Embassy-authorized personnel shall be granted the ability to add or remove e-SIM profiles for Embassy numbers.

21. **Corporate Portal Access**

A corporate portal or customer-care account shall be provided to allow authorized personnel to view and manage Embassy numbers.

22. **Service Outage Notifications**

The provider should immediately notify the Embassy in advance of any scheduled upgrades or maintenance and should immediately inform the Embassy of unplanned outages and provide timely updates until services are restored.

23. **Alternate Plan Approval**

If any existing service plan must be discontinued, the provider shall propose alternate plans and obtain written approval from the Embassy prior to implementation.

24. **Telecommunications Licensing Requirement**

- The contractor must be a licensed mobile telecommunications service provider authorized by the Nepal Telecommunications Authority (NTA) to operate cellular network services within Nepal.
- Offerors shall submit documentary proof of a valid telecommunications service provider license issued by the Nepal Telecommunications Authority as part of their proposal.

END OF PERFORMANCE WORK STATEMENT

Attachment 2

CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT (C-SCRM) QUESTIONNAIRE

Instructions:
- This worksheet shall be completed by the vendor responsible for submitting the offer. References to "organization" refer to the offering entity. If the offering entity is a joint venture (JV), the response may come from either the JV or from the JV managing partner.
- Provide the requested inputs in the gray shaded lines of the template under column D, Vendor Response, for all Items Numbers for Sections 1-3. Offerors are advised that the Government may request documentation from the Offerors to validate the responses provided.

SECTION 1 - CONTACT INFORMATION

ITEM NO.	ITEM DESCRIPTION	VENDOR RESPONSE	
1.1	Enter the name of your company.		
1.2	Enter the name of the primary Point-Of-Contact (POC) for your company that the Government may contact to discuss the vendor inputs on this questionnaire.		
1.3	Enter the job title of the primary POC.		
1.4	Enter the phone number of the primary POC in the following format: (555) 555-5555		
1.5	Enter the e-mail address of the primary POC.		

SECTION 2 VENDOR RISK MANAGEMENT PLAN

ITEM NO.	ITEM DESCRIPTION	VENDOR RESPONSE	NIST SP 800-53 Reference
2.1	Does your organization identify its key supply chain threats? (Note: if you do not have suppliers, answer "Yes")		IR-8, SR-7
2.2	Does your organization map key suppliers to your supply chain threats? (Note: if you do not have suppliers, answer "Yes")		IR-8, SR-7
2.3	Does your organization have written SCRM requirements in contracts with your key suppliers? (Note: if you do not have suppliers, answer "Yes")		SA-4
2.4	Does your organization verify that your suppliers meet SCRM requirements through contractual terms and conditions? (Note: if you do not have suppliers, answer "Yes")		SR-6

SECTION 3 PHYSICAL AND PERSONNEL SECURITY

ITEM NO.	ITEM DESCRIPTION	VENDOR RESPONSE	NIST SP 800-53 Reference
3.1	Does your organization have policies for conducting background checks of your employees as permitted by the country in which your organization operates?		PE-2, PE-3 PS-3
3.2	Does your organization have procedures in place to prevent tampering of Information and Communications Technology (ICT) equipment stored as supply chain inventory?		SR-9 AC-1
3.3	Do you provide literacy training on recognizing and reporting potential indicators of insider threat?		AT-2(2)

Attachment 3

Form Approved:
OMB No. 10670-0052

Department of State

Secure Software Development Attestation Form Instructions

Read all instructions before completing this form

Privacy Act Statement (applicable to forms submitted to the DHS/CISA Repository for Software Attestations and Artifacts)

Authority: 44 U.S.C. § 3554, Executive Order (E.O.) 14028, "Improving the Nation's Cybersecurity," and OMB Memorandum M-22-18, "Enhancing the Security of the Software Supply Chain through Secure Software Development Practices," as amended by OMB Memorandum M-23-16, "Update to Memorandum M-22-18, Enhancing the Security of the Software Supply Chain through Secure Software Development Practices," authorize the collection of this information.

Purpose: The purpose of this form is to provide the Federal Government assurances that software used by agencies is securely developed.

Background: This information may be disclosed as generally permitted under Executive Order 14028, Improving the Nation's Cybersecurity (E.O. 14028) and Memorandum M-22-18, "Enhancing the Security of the Software Supply Chain through Secure Software Development Practices" (M-22-18), as amended. This form collects contact information from vendor employees who make the attestation. For DHS, information may be disclosed as necessary and authorized by the routine uses published in DHS/ALL-002 Department of Homeland Security (DHS) Mailing and Other List System, November 25, 2008, 73 FR 71659.

Failure to provide any of the information requested may result in the agency no longer utilizing the software at issue. Willfully providing false or misleading information may constitute a violation of 18 U.S.C. § 1001, a criminal statute.

What is the Purpose of Filling out this Form?

The Federal Information Security Modernization Act of 2014 (FISMA) requires each Federal agency to provide security protections for both "information collected or maintained by or on behalf of an agency" and for "information systems used or operated by an agency or by a contractor of an agency or other organization on behalf of an agency." FISMA and other provisions of Federal law authorize the Director of the Office of Management and Budget (OMB) to promulgate information security standards for information security systems, including to ensure compliance with standards promulgated by the National Institute of Standards and Technology (NIST).

Executive Order 14028, "Improving the Nation's Cybersecurity" (E.O. 14028), emphasizes the importance of securing software used by the Federal Government to perform its critical functions. To further this objective, E.O. 14028 required NIST to issue guidance "identifying practices that enhance the security of the software supply chain."[1] The NIST Secure Software Development Framework (SSDF) (SP 800-218),[2] and the NIST Software Supply Chain Security Guidance[3] (these two documents, taken together, are hereinafter referred to as "NIST Guidance") include a set of practices that create the foundation for developing secure software.

E.O. 14028 further requires that the Director of OMB take appropriate steps to ensure that Federal agencies comply with NIST Guidance. To that end, OMB issued Memorandum M-22-18, "Enhancing the Security of the Software Supply Chain through Secure Software Development Practices" (M-22-18), on September 14, 2022. That memorandum was updated on June 9, 2023, through OMB Memorandum M-23-16, "Update to Memorandum M-22-18, Enhancing the Security of the Software Supply Chain through Secure Software Development Practices" (M-23-16). M-22-18, as amended by M-23-16, provides that a Federal agency may use software subject to M-22-18's requirements only if the producer of that software has first attested to compliance with Federal Government-specified secure software development practices drawn from the SSDF.

This self-attestation form identifies the minimum secure software development requirements a software producer must meet, and attest to meeting, before software subject to the requirements of M-22-18 and M-23-16 may be used by Federal agencies. This form is used by software producers to attest that the software they produce is developed in conformity with specified secure software development practices.

Software requires self-attestation if any of the conditions is met:

1. The software was developed after September 14, 2022;
2. The software was developed prior to September 14, 2022, but was modified by major version changes (e.g., using a semantic versioning schema of Major.Minor.Patch, the software version number goes from 2.5 to 3.0) after September 14, 2022; or

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[1] Executive Order on Improving the Nation's Cybersecurity (E.O. 14028), Section 4(e).
[2] Available at: https://csrc.nist.gov/Projects/ssdf
[3] Available at: https://www.nist.gov/system/files/documents/2022/02/04/software-supply-chain-security-guidanceunder-EO-14028-section-4e.pdf

3. The producer delivers continuous changes to the software code (as is the case for software-as-a-service products or other products using continuous delivery/continuous deployment).

Software products and components in the following categories are not in scope for M-22-18, as amended by M-23-16, and do not require a self-attestation:

1. Software developed by Federal agencies;
2. Open-source software that is freely and directly obtained by a Federal agency;
3. Third-party open source and proprietary components that are incorporated into the software end product used by the agency; or
4. Software that is freely obtained and publicly available.

Software producers who utilize third party components in their software are required to attest that they have taken specific steps, detailed in "Section III – Attestation and Signature" of the common form, to minimize the risks of relying on such components in their products.

Agency-specific instructions may be provided to the software producer outside of this common form. Conformance to agency-specific requirements may be included with this form as an addendum; agencies are responsible for fulfilling any Paperwork Reduction Act requirements applicable to agency-specific additions.

If a software producer is unable to submit via the online form, they may email a pdf version of the form to the respective agency:
Online Form Instructions:

- ☐ Selecting the provided URL: https://softwaresecurity.cisa.gov

OR

Local PDF Instructions:

- ☐ Saving the completed form as a PDF using the following naming convention:
  Software Producer: Software Producers name which manufactured/compiled the software product
  Product name: Complete name of software product
  Version: Version number of software product
  Attestation date: Date the software product was attested:
  e.g. [Software Producer]_[Product]_[Version]_[Attestation Date]
  →Acme_SecuritySuite_4.6.2.1_20230124
  Send the form in accordance with the solicitation or requestor's instructions; if the solicitation or requestor did not provide instructions for submitting this form, send it to the cognizant contracting officer or purchase card holder by e-mail.

Filling Out the Form

Software Producer Information
Please provide a description of the software and information about the software producer. All fields in the attestation form are required to be appropriately completed by the software producer. Incomplete forms will not be accepted.

The form must be signed by the Chief Executive Officer (CEO) of the software producer or their designee, who must be an employee of the software producer and have the authority to bind the corporation. By signing, that individual attests that the software in question is developed in conformity with the secure software development practices delineated within this form. The software may be used by a federal agency, consistent with the requirements of M-22-18, as amended by M-23-16, once the agency has received an appropriately signed copy of the attestation form.

The software producer may choose to demonstrate conformance with the minimum requirements by submitting a third-party assessment documenting that conformance. A third-party assessment must be performed by a Third Party Assessor Organization (3PAO) that has either been FedRAMP certified or approved in writing by an appropriate agency official. The 3PAO must use relevant NIST Guidance that includes all elements outlined in this form as part of the assessment baseline. To rely upon a third-party assessment, the software producer must check the appropriate box in Section III and attach the assessment to the form. The producer need not sign the form in this instance. The agency shall take appropriate steps to ensure that the assessment is not posted publicly, either by the vendor or by the agency itself.

Additional Information:
In the event that an agency cannot obtain a completed self-attestation from the software producer, an agency may still decide to use the producer’s software if the producer identifies the practices to which they cannot attest, documents practices they have in place to mitigate associated risks, and submits a plan of actions and milestones (POA&M) to the agency. When an attestation is not provided, per OMB guidance, agencies are responsible for requesting from OMB an extension or waiver for the continued use.

This common self-attestation form fulfills the minimum requirements set forth by OMB in M-22-18, as amended by M-23-16.

The attestation form, background, and instructions are subject to change and may be modified.

Secure Software Development Attestation Form
Version 1.0

Section I

☐ **New Attestation** ☐ **Attestation Following Extension or Waiver** ☐ **Revised Attestation**

Type of Attestation: ☐ Company-wide ☐ Individual Product ☐ Multiple Products or Specific Product Version(s) (please provide complete list)

If this attestation is for an individual product or multiple products, provide the software name, version number, and release/publish date to which this attestation applies. Additional pages can be attached to this attestation if more lines are needed:

Product(s) Name	**Version Number[4] (if applicable)**	**Release/Publish Date (if applicable)**
		YYYY-MM-DD

For the above specified software, this form does not cover software or any components of that software that fall into the following categories:

1. Software developed by Federal agencies;
2. Open source software that is freely and directly obtained directly by a Federal agency;
3. Third-party open source and proprietary components that are incorporated into the software end product used by the agency; or
4. Software that is freely obtained and publicly available.

Note: In signing this attestation, software producers are attesting to adhering to the secure software development practices outlined in Section III for code developed by the producer.

Section II

1. Software Producer Information
Company Name:
Address:
City:

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[4] Attestations are binding for future versions of the named software product unless and until the software producer notifies the agencies to which it previously submitted the form that its development practices no longer conform to the required elements specified in the attestation.

State or Province:
Postal Code:
Country:
Company Website:

2. Primary Contact for this Document and Related Information (may be an individual, role, or group; provide business information, do not include personal information):
Name:
Title:
Address:
Phone Number:
Email Address (may be an alias/distribution list):

<u>Section III</u>

Attestation and Signature

On behalf of the above-specified company, I attest that, to the best of my knowledge, [software producer] presently makes consistent use of the following practices, derived from the secure software development framework (SSDF),[5] in developing the software identified in Section I:

1) The software is developed and built in secure environments. Those environments are secured by the following actions, at a minimum:

    a) Separating and protecting each environment involved in developing and building software;

    b) Regularly logging, monitoring, and auditing trust relationships used for authorization and access:

        i) to any software development and build environments; and

        ii) among components within each environment;

    c) Enforcing multi-factor authentication and conditional access across the environments relevant to developing and building software in a manner that minimizes security risk;

    d) Taking consistent and reasonable steps to document, as well as minimize use or inclusion of software products that create undue risk within the environments used to develop and

[5] The SSDF are standards and best practices established by the National Institute of Standards and Technology (NIST) in NIST Special Publication (SP) 800-218.

build software;

e) Encrypting sensitive data, such as credentials, to the extent practicable and based on risk;

f) Implementing defensive cybersecurity practices, including continuous monitoring of operations and alerts and, as necessary, responding to suspected and confirmed cyber incidents;

2) The software producer makes a good-faith effort to maintain trusted source code supply chains by employing automated tools or comparable processes to address the security of internal code and third-party components and manage related vulnerabilities;

3) The software producer maintains provenance for internal code and third-party components incorporated into the software to the greatest extent feasible;

4) The software producer employs automated tools or comparable processes that check for security vulnerabilities. In addition:
   a) The software producer operates these processes on an ongoing basis and prior to product, version, or update releases;
   b) The software producer has a policy or process to address discovered security vulnerabilities prior to product release; and
   c) The software producer operates a vulnerability disclosure program and accepts, reviews, and addresses disclosed software vulnerabilities in a timely fashion and according to any timelines specified in the vulnerability disclosure program or applicable policies.

☐ I further attest that the software producer will notify any agency to which it has submitted this form if and when the producer ceases to make consistent use of the practices identified above in developing the software.

Signature of CEO or Designee with authority to bind the corporation
____

Date (YYYY-MM-DD): ________________________________
Name:
Title:

OR

☐ A certified FedRAMP Third Party Assessor Organization (3PAO) or other 3PAO approved in writing by an appropriate agency official has evaluated our conformance to all elements in this form. The 3PAO used relevant NIST Guidance that includes all elements outlined in this form as the assessment baseline. The assessment is attached.

ATTACHMENT(S):

- **[Artifact/Addendum Title]:** [Artifact/Addendum Description]

Burden Statement

The public reporting burden to complete this information collection is estimated at **3 hours and 20 minutes** per response, including time for reviewing instructions, searching data sources, gathering, and maintaining the data needed, and completing and reviewing the collection of information. An agency may not conduct or sponsor, and a person is not required to respond to, a collection of information unless it displays a currently valid OMB control number and expiration date. Send comments regarding this burden estimate or any other aspect of this collection information, including suggestions for reducing this burden, to the Department of State / ECISOSCRMGroup@state.gov**.**

APPENDIX
REFERENCES

Minimum Attestation References:
The minimum requirements within the Secure Software Attestation Form address requirements put forth in E.O. 14028 subsection (4)(e). A mapping to specific SSDF practices and tasks is provided for reference purposes.

Attestation Requirements	Related E.O. 14028 Subsection		Related SSDF Practices and Tasks
1) The software is developed and built in secure environments. Those environments are secured by the following actions, at a minimum:	4e(i)		[See rows below]
a) Separating and protecting each environment involved in developing and building software;	4e(i)(A)		PO.5.1
b) Regularly logging, monitoring, and auditing trust relationships used for authorization and access: i) to any software development and build environments; and ii) among components within each environment;	4e(i)(B)		PO.5.1
c) Enforcing multi-factor authentication and conditional access across the environments relevant to developing and building software in a manner that minimizes security risk;	4e(i)(C)		PO.5.1, PO.5.2
d) Taking consistent and reasonable steps to document, as well as minimize use or inclusion of software products that create undue risk within the environments used to develop and build software;	4e(i)(D)		PO.5.1
e) Encrypting sensitive data, such as credentials, to the extent practicable and based on risk;	4e(i)(E)		PO.5.2
f) Implementing defensive cybersecurity practices, including continuous monitoring of operations and alerts and, as necessary,	4e(i)(F)		PO.3.2, PO.3.3, PO.5.1, PO.5.2

responding to suspected and confirmed cyber incidents;			
2) The software producer makes a good-faith effort to maintain trusted source code supply chains by employing automated tools or comparable processes to address the security of internal code and third-party components and manage related vulnerabilities;	4e(iii)		PO 1.1, PO.3.1, PO.3.2, PO.5.1, PO.5.2, PS.1.1, PS.2.1, PS.3.1, PW.4.1, PW.4.4, PW 7.1, PW 8.1, RV 1.1
3) The software producer maintains provenance for internal code and third-party components incorporated into the software to the greatest extent feasible;	4e(vi)		PO.1.3, PO.3.2, PO.5.1, PO.5.2, PS.3.1, PS.3.2, PW.4.1, PW.4.4, RV.1.1, RV.1.2
4) The software producer employed automated tools or comparable processes that check for security vulnerabilities. In addition: a) The software producer operates these processes on an ongoing basis and prior to product, version, or update releases; b) The software producer has a policy or process to address discovered security vulnerabilities prior to product release; and c) The software producer operates a vulnerability disclosure program and accepts, reviews, and addresses disclosed software vulnerabilities in a timely fashion and according to any timelines specified in the vulnerability disclosure program or applicable policies.	4e(iv)		PO.4.1, PO.4.2, PS.1.1, PW.2.1, PW.4.4, PW.5.1, PW.6.1, PW.6.2, PW.7.1, PW.7.2, PW.8.2, PW.9.1, PW.9.2, RV.1.1, RV.1.2, RV.1.3, RV.2.1, RV.2.2, RV.3.3